

1.

| CASE #      | CASE NAME                                | HEARING NAME                                                                                                                                                               |
|-------------|------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVRI2404675 | H. VS VISTA<br>BEHAVIORAL HEALTH,<br>LLC | MOTION TO COMPEL THE<br>DEPOSITION OF DEFENDANT<br>ACADIA HEALTHCARE COMPANY,<br>INC'S PERSON MOST<br>KNOWLEDGEABLE AND REQUEST<br>FOR PRODUCTION OF<br>DOCUMENTS BY K. H. |

**Tentative Ruling:**

The unopposed motion is granted. Defendants Vista Behavioral Hospital and Acadia are compelled to produce Jonathan Silver for deposition and produce responsive documents within two (2) weeks of service of this Court's order. Monetary sanctions are imposed against Defendants in favor of Plaintiff in the reduced amount of \$860 (2 hours at \$400 per hour, plus \$60 filing fee), payable within 30 days.

2.

| CASE #      | CASE NAME                       | HEARING NAME                                                                                                                                                         |
|-------------|---------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVRI2506478 | RIVERA VS MCC<br>PIPELINE, INC. | MOTION FOR LEAVE TO AMEND<br>ON 1ST AMENDED COMPLAINT<br>FOR BREACH OF<br>CONTRACT/WARRANTY (OVER<br>\$35,000) OF ROGELIO RIVERA BY<br>ROGELIO RIVERA, JACKIE RIVERA |

**Tentative Ruling:**

The motion is denied without prejudice.

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

None of these requirements have been met.